

HOUSE No. 3899

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn and Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing reserved capacity billing in the town of Norfolk.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>2/19/2025</i>

HOUSE No. 3899

By Representative Vaughn of Wrentham and Senator Rausch, a joint petition (accompanied by bill, House, No. 3899) of Marcus S. Vaughn (by vote of the town) relative to reserved capacity billing in the town of Norfolk. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing reserved capacity billing in the town of Norfolk.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 of chapter 354 of the acts of 2022 is hereby amended by inserting
2 after the “said chapter 83” the following words:-

3 “, or this act”

4 SECTION 2. Section 6 of said chapter 354 is hereby amended by adding the following at
5 the end thereof:-

6 “In addition, the select board of the town of Norfolk exercising the powers of a sewer
7 commission may elect to assess and collect annual charges to all customers with reserve capacity
8 for the Norfolk wastewater treatment plant on a pro rata basis, based upon such allocation of
9 capacity, not whether a property is connected to a common sewer system or its actual use. The
10 town shall have all collection remedies for such charges as it would for any rate or charge under
11 sixteen A to sixteen F, inclusive of chapter 83.”

12 SECTION 3. Said chapter 354 is hereby amended by inserting the following new
13 section:-

14 “SECTION 9A. A property owner may enter into an agreement to sell or transfer its
15 allocation of capacity to another parcel of land located within the town center wastewater service
16 area, subject to the approval of the select board exercising the powers of a sewer commission.”